

The Transport Of Animals Rules, 1978

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The Transport Of Animals Rules, 1978

UNION OF INDIA

India

The Transport Of Animals Rules, 1978

Rule THE-TRANSPORT-OF-ANIMALS-RULES-1978 of 1978

Published on 23 March 1978

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The Transport Of Animals Rules, 1978

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19.

/885

In exercise of the powers conferred by clause (h) of sub-section (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), the Central Government hereby makes the following rules, the same having been previously published as required by the said section, namely:--

Chapter I

1.
Short title .-These rules may be called The Transport of Animals Rules, 1978.

2.
Definitions .-In these rules, unless the context otherwise requires,--

(a)
qualified veterinary surgeon means one who holds a diploma or a degree of a recognised veterinary college;

(b)
"Schedule" means a Schedule appended to these rules.

Chapter II

Transport Of Dogs And Cats

3.
Rules 4 to 14 shall apply to the transport of dogs and cats of all breeds whether by rail, road, inland waterway, sea or air.

4.
(a) A valid health certificate by a qualified veterinary surgeon to the effect that the dogs and cats are in a fit condition to travel by a rail, road, inland waterway, sea or air and are not showing any sign of infectious or contagious disease including rabies, shall accompany each consignment and the certificate shall be in the form specified in Schedule A.

(b)
In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

5.
No dog or cat in an advanced stage of pregnancy shall be transported.

6.
(a) Dogs or cats to be transported in the same container shall be of the same species and breed.

(b)
Unweaned puppies or kittens shall not be transported with adult dogs or cats other than their dams.

(c)
No female dog or cat in season (cestrus) shall be transported with any male.

7.
(a) Any dog or cat reported to be vicious or exhibiting a vicious disposition shall be transported individually in a cage, muzzled and labelled to give warning to handlers.

(b)
In extreme cases, the dogs or cats shall be administered with sedative drugs by a qualified veterinary surgeon.

8.
(1)
When dogs or cats are to be transported for long distances--

(a)
they shall be fed and given water atleast two hours prior to their transport and shall not be packed for transport if they are hungry or thirsty;

(b)
they should be exercised as late as possible before despatch;

(c)
they shall be given adequate water for drinking every four hours in summer or every six hours during winter;

(d)
they shall be fed once in twelve hours in the case of adult dogs or cats and they shall be fed once in four hours in the case of puppies and kittens in accordance with the instructions of the consignors, if any;

(e)
adequate arrangements shall be made for their care and management during the journey.

(2)
When the dogs or cats are to be transported by rail involving a journey of more than six hours, an attendant shall accompany the dogs or cats to supply them with food and water on the way and the attendant shall have access to the dogs or cats for this purpose at all stations and no dog or cat shall be exposed to the direct blast of air during such

journey.

9.

Where dogs or cats are to be transported for short distance by road in a public vehicle, the following precautions are to be taken, namely:--

(a)

they shall be put in a cage and the cage containing the dogs or cats shall not be put on the roof of the vehicle but shall be put inside the vehicle preferably near the end of the vehicle;

(b)

the vehicle transporting the dogs or cats shall as far as possible maintain constant speed, avoiding sudden stops and reducing effects of shocks and jolts to the minimum;

(c)

atleast one attendant shall be present at all times during transit who shall ensure that proper transit conditions are observed and shall also replenish food and water whenever necessary.

10.

Where dogs or cats are to be transported by air:--

(a)

the cages shall be properly cleaned and disinfected before the dogs or cats are put in the cages;

(b)

sufficient paddy straw or saw dust or paper cuttings shall be provided for cats in the cages as resting materials;

(c)

for international transport, the dogs or cats shall be kept in a pressurized compartment with regulated temperature.

11.

The size and type of crates for transport of dogs and cats shall conform as clearly as may be to the size and type specified in Schedule B and Schedule C respectively.

12.

All containers of dogs or cats shall be clearly labelled showing the names, address and telephone number (if any) of the consignor.

13.

The consignee shall be informed about the train or transport arrival or flight number and its time of arrival in advance.

14.

Consignment of dogs or cats to be transported by rail or road shall be booked by the next passenger or mail train or bus and should not be detained after accepting the consignment for booking.

Chapter III

Transport Of Monkeys

15.

Rules 16 to 23 shall apply to the transport of all types of monkeys from the trapping area to the nearest rail-head.

16.

(a) A valid health certificate by a qualified veterinary surgeon to the effect that the monkeys are in a fit condition to travel from the trapping area to the nearest unit-head and are not showing any sign of infections or contagious disease shall accompany each consignment;

(b)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

(c)

The certificate shall be in a form specified in Schedule D.

17.

(1)

Monkeys from one trapping area shall not be allowed to mix with monkeys from any other trapping area for preventing the dangers of crossinfection.

(2)

The time in transit from trapping area to the nearest rail-head shall be as short as possible and factors causing stress to monkeys shall be reduced to the minimum.

(3)

If the travel time is longer than six hours provision shall be made to feed and to give water to the monkeys en route.

(4)

During transit, precautions shall be taken to protect the monkeys from extreme weather conditions and monkeys that die en route shall be removed at the earliest available opportunity.

18.

Monkeys that are not completely weaned, that is, under 1.8 kilogram in weight, shall not be transported except when specifically permitted by the Central Government.

19. (a) Pregnant and nursing monkeys shall not be transported except when specifically permitted by the Central Government.

(b)

Pregnant and nursing monkeys as well as monkeys weighing more than 5 kilograms shall be transported in compartmented cages.

20.

All monkeys in the same cage shall be of the same species and of approximately the same weight and size.

21.

Monkeys captured within their natural habitat shall be placed in new, sterilized or thoroughly cleaned cages and subsequent transfer, if any, shall also be new, disinfected or thoroughly cleaned cages.

22.

Monkeys shall be transported from trapping area to the nearest rail-head by the fastest means of transport available and the monkeys should not be left un-attended at any time during the journey.

23.

(1)

(a)

Monkeys shall be transported in suitable wooden or bamboo cages so constructed as not to allow the escape of the monkeys but permit sufficient passage of air ventilation.

(b)

No nails, metallic projections or sharp edges shall be exposed on the exterior or in the interior of the cages.

(c)

Each cage shall be equipped with appropriate water and feed receptacles which are leak proof and capable of being cleaned and refilled during transit.

(2)

The floor of the cages shall be made of bamboo reapers and the space between each reaper shall range between 20 mm and 30 mm.

(3)

To facilitate carriage of these cages, provision may be made for rope loops at the four top ends.

(4)

The weight of anyone loaded cage shall not exceed 45 kilograms.

(5)

The following two sizes of cages shall be used-

(a)

910 x 760 x 510 mm-to contain not more than twelve monkeys, weighing between 1.8 and 3.00 kilograms each or ten monkeys weighing between 3.1 and 5.0 kilograms each;

(b)

710 x 710 x 510 mm-to contain not more than ten monkeys weighing between 1.8 and 3.00 kilograms each or eight monkeys weighing between 3.1 and 5.00 kilograms each:

Provided that wooden cages as specified in Schedule F to these rules may also be used for carrying monkeys from the trapping area to the nearest rail-head.

(6)

The construction details of two types of cages shall be given in Schedule E.

24.

Rules 25 to 32 shall apply to transport of monkeys from a rail-head to another rail-head or from a rail-head to nearest airport.

25.

(a) Loading and unloading shall be carried out quickly and efficiently.

(b)

Cages shall be stored in such a manner that ventilation is adequate and the monkeys are not exposed to draught and direct heat or cold.

(c)

Monkeys found dead shall be removed as quickly as possible for suitable disposal.

26.

The transport cages shall be in accordance with specifications given in rule 28.

27.

(1)

Due provision shall be made by the sender for a sufficient supply of food and water for the journey.

(2)

In case the journey is over six hours an attendant shall accompany the monkeys to supply them food, water, and such other things, on route and he shall have access to the monkeys for feeding, giving water and attention at all stations en route.

(3)

The food and water containers shall be checked at least every six hours and refilled, if necessary.

(4)

Monkeys shall not be disturbed during the night hours.

28.

Not more than one cage shall be placed over the other and gunny packing shall be placed between two cages, when one is placed over the other.

29.

Monkeys shall be brought to the airport sufficiently early.

30.

Monkeys shall be provided with food and water immediately before loading on the aircraft.

31.

(a) The cages shall be clearly labelled showing the name, address and telephone number (if any) of the consignor and the consignee in bold red letters.

(b)

The consignee shall be informed about the train in which the consignment of monkeys is being sent and its arrival time in advance.

(c)

The consignment of monkeys to be transported shall be booked by the next passenger or mail train and should not be detained after the consignment is accepted for booking.

32.

(a) A valid health certificate by a qualified veterinary surgeon to the effect that the monkeys are in a fit condition to travel from the nearest rail-head to another rail-head or from a rail-head to the nearest airport and are not showing any signs of infectious or contagious disease shall accompany each consignment.

(b)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

(c)

The certificate shall be in a form specified in Schedule D.

33.

Rules 34 to 45 shall apply in relation to the transport of monkeys by air.

34.

The time in transit shall be as short as possible and factors causing stress to monkeys shall be reduced to the minimum.

35.

Monkeys that are not completely weaned, that is, under 1.8 kilograms in weight, shall not be transported except when specifically permitted by the Central Government.

36.

Pregnant and nursing monkeys shall not be transported except when specifically permitted by the Central Government. Pregnant and nursing monkeys and monkeys weighing over 5 kilograms shall be transported in specially designed individual cages.

37.

All monkeys in the same cage shall be of the same species and of approximately the same weight and size.

38.

(1)

In view of the danger of infection, only monkeys of the same species shall be transported in the same cabin or compartment of the aircraft.

(2)

Apparently sick or disabled monkeys exhibiting external injuries or infested with parasites shall not be transported.

(3)

Transport of other species of animals, birds, fish, food stuff or poisonous materials, such as pesticides and insecticides, in the same cabin or compartment shall not be permitted.

39.

(1)

At no time during transit shall the monkeys be left unattended when carried in a freighter aircraft.

(2)

At least one attendant shall be present at all times when the aircraft is on the ground.

40.

(1)

Monkeys shall be transported in suitable wooden cages, so constructed as not to allow the escape of the monkeys and shall allow sufficient passage of air for ventilation; no nails, metallic projections or sharp edges shall be exposed in the interior or on the exterior of such cages. Each cage shall be equipped with water and food receptacles which shall be leak-proof and be capable of being cleaned and refilled during transit. A suitable absorbent material such as saw dust shall be kept in the dropping trays.

(2)

The weight of any one loaded cage shall not exceed 45 kilograms in any case.

(3)

The following two sizes of cages shall be used:--

(a)

460 x 460 x 460 mm-to contain not more than ten monkeys weighing from 1.8 to 3.0 kilograms each or four monkeys weighing from 3.1 to 5.0 kilograms each; and

(b)

760 x 530 x 460 mm to contain not more than ten monkeys weighing from 1.8 to 3.0 kilograms each or eight monkeys weighing from 3.1 to 5.0 kilograms each.

(4)

The construction details of the two types of cages shall be as given in Schedule F.

(5)

The construction details of the two types of cages used for the transport of pregnant and nursing monkeys shall be as given in Schedule G.

41.

(a) The cages shall be clearly labelled showing the name, address and telephone number (if any) of the consignor and the consignee in bold red letters.

(b)

The consignee shall be informed in advance about the flight number of the freighter aircraft in which the consignment of monkeys is being sent and its arrival time.

(c)

The consignment of monkeys to be transported shall be booked by the next flight of the freighter aircraft and should not be detained after the consignment is accepted for booking.

42.

(1)

A valid health certificate by a qualified veterinary surgeon to the effect that the monkeys are fit to travel by air and are not showing any signs of infectious or contagious disease shall accompany each consignment of monkeys.

(2)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for shipment.

(3)

The form of a certificate under sub-rule (1) be as given in Schedule D.

43.

(1)

The air shall be changed not less than twelve times per hour and draughts shall be avoided and there shall be no dead pockets of air.

(2)

Except when the monkeys are being fed and given water, they shall travel in semi-darkness to make them quieter and less inclined to fight and thus given them better opportunities of resting.

44.

The food and water containers shall be checked at every stop and refilled; if necessary, and a sufficient stock of food shall be available on the aircraft and at likely stopping places.

Note .-About 85 grams of food per monkey is required daily. Suitable foods are dry cereal grains or gram. It is recommended that whole gram made into biscuits or wheat meal bread should be fed. A minimum of 140 ml. of water shall be allowed for each monkey per day.

45.

An empty cage of the usual dimensions with its sides covered except 50 mm at the top to allow for ventilation shall be provided in the freighter aircraft for housing the monkeys which fall sick or are injured during the journey.

Chapter IV

Transport Of Cattle

46.

Rules 47 to 56 shall apply to the transport by rail or of cows, bulls, bullocks buffaloes, yaks and calves (hereinafter in these rules referred to as "cattle").

47.

(a) A valid certificate by a qualified veterinary surgeon to the effect that the cattle are in a fit condition to travel by rail or road and are not suffering from any infectious or contagious or parasitic diseases and that they have been vaccinated against rinderpest and any other infectious or contagious or parasitic diseases shall accompany each consignment.

(b)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

(c)

The certificate shall be in the form specified in Schedule E.

48.

Veterinary first-aid equipment shall accompany all batches of cattle.

49.

(a) Each consignment shall bear a label showing in bold red letters the name, address and telephone number (if any) of the consignor and consignee, the number and types of cattle being transported and quantity of rations and food provided.

(b)

The consignee shall be informed about the train or vehicle in which the consignment of cattle is being sent and its arrival time in advance.

(c)

The consignment of cattle shall be booked by the next train or vehicle and shall not be detained after the consignment is accepted for booking.

50.

[

The average space provided per cattle in Railway wagon or vehicle shall be as provided in Tables I and II as given below:--

TABLE I

SPACE ALLOWANCE PER CATTLE

Cattle weighing upto 200 kg

1 Square Meter

Cattle weighing 200-300 kg

1.20 Square Meter

Cattle weighing 300-400 kg

1.40 Square Meter

Cattle weighing above 400 kg

2.0 Square Meter]

51.

(a) Suitable rope and platforms should be used for loading cattle from vehicles.

(b)

In case of railway wagon the dropped door of the wagon may be used as a ramp when loading or unloading is done to the platform.

52.

Cattle shall be loaded after they are properly fed and given water.

53.

Cattle in advanced stage of pregnancy shall not be mixed with young cattle in order to avoid stampede during transportation.

54.

(1)

Watering arrangements on route shall be made and sufficient quantities of water shall be carried for emergency.

(2)

Sufficient feed and fodder with adequate reserve shall be carried to last during the journey.

(3)

Adequate ventilation shall be ensured.

55.

When cattle is to be transported by rail-

(a)

an ordinary goods wagon shall carry not more than ten adult cattle or fifteen calves on broad gauge, not more than six adult cattle or ten calves on metre gauge, or not more than four adult cattle or six calves on narrow gauge;

(b)

every wagon carrying cattle shall have atleast one attendant;

(c)

cattle shall be loaded parallel to the rails, facing each other;

(d)

rations for padding, such as straw, shall be placed on the floor to avoid injury if a cattle lies down and this shall not be less than 6 cms thick;

(e)

rations for the journey shall be carried in the middle of the wagon;

(f)

to provide adequate ventilation, upper door of one side of the wagon shall be kept open properly fixed and the upper door of the wagon shall have wire gauge closely welded mesh arrangements to prevent burning cinders from the engines entering the wagon and leading to fire outbreak;

(g)

cattle wagons should be attached in the middle of the train;

(h)

cooking shall not be allowed in the wagons nor hurricane lamps without chimneys;

(i)

two breast bars shall be provided on each side of the wagon, one at height of 60 to 80 cm and the other at 100 to 110 cm.;

(j)

cattle-in-milk shall be milked at least twice a day and the calves shall be given sufficient quantity of milk to drink;

(k)

as far as possible, cattle may be moved during the nights only;

(l)

during day time, if possible, they should be unloaded, fed, given water and rested and if in milk, milking shall be carried out.

56.

When cattle are to be transported by goods vehicle the following precautions are to be taken, namely:--

(a)

specially fitted goods vehicles with a special type of tail board on padding around the sides should be used;

(b)

ordinary goods vehicles shall be provided with anti-slipping material, such as coir matting or wooden board on the floor and the superstructure, if low, should be raised;

(c)

no goods vehicle shall carry more than six cattle;

(d)

each goods vehicle shall be provided with one attendant;

(e)

while transporting the cattle, the goods vehicle shall not be loaded with any other merchandise; and

(f)

to prevent cattle being frightened or injured, they should preferably face the engine.

Chapter V

Transport Of Equines

57.

Rules 57 to 63 shall apply to the transport by rail, road or sea of horses, mules and donkeys (hereinafter in these rules referred to as "equines").

58.

(a) A valid certificate by a qualified veterinary surgeon to the effect that the equines are in a fit condition to travel by rail; road or sea and are not suffering from any infectious contagious disease or diseases shall accompany each consignment.

(b)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

(c)

The certificate shall be in a form specified in Schedule I.

(d)

[Horses : Space requirement while being transported by road/rail

Horses

Space in Square Meter

Stallion Horses

2.25

Mares (including pregnant)

2

Ponies

1.5

6 Months to 12 Months

1.4

12 Months to 18 Months

1.6

Over 18 Months and upto 2 Years

2

Mares with Foal at foot (upto 6 months)

2.25.]

59.

(a) Each consignment shall bear a label showing in bold red letters the name, address and telephone number (if any) of the consignor and consignee, the number and type of equines being transported and quantity of rations and food provided.

(b)

The consignee shall be informed in advance about the train or vehicle or ship in which the consignment of equines is being sent and its arrival time.

(c)

The consignment of equines shall be booked by the next train or vehicle or ship and shall be accepted for booking.

60.

(a) Pregnant and young equines shall not be mixed with other animals.

(b)

Different species of equines shall be kept separately.

(c)

Equines shall be loaded after being fed and given water adequately, watering arrangements shall be made en route and sufficient food carried to last during the journey.

(d)

Veterinary first-aid equipment shall accompany all batches of equines.

(e)

Adequate ventilation shall be ensured.

(f)

Suitable ramps and platforms, improvised where not available, shall be used for loading and unloading equines.

61.

For the transport of equines by rail, the following precautions shall be taken:--

(a)

equines shall be transported by passenger or mixed trains only;

(b)

ordinary goods wagon when used for transportation shall carry not more than eight to ten horses or ten mules or ten donkeys on broad gauge and not more than six horses or eight donkeys on metre-gauge;

(c)

extreme hot water shall be sprinkled over the wagons containing equines by the railway authorities to bring down temperature. Ice slabs in specially made containers may be placed inside the wagon, if recommended by a qualified veterinary surgeon;

(d)

every wagon shall have two attendants if the equines are more than two in number;

(e)

equines shall be loaded parallel to the rails, facing each other;

(f)

material for padding, such as paddy straw, shall be placed on the floor to avoid injury if an animal lies down and this shall not be less than 6 cm thick;

(g)

to provide adequate ventilation, upper door of the side of the wagon shall be kept upon and properly fixed and the upper door of the wagon shall have wire gauge closely welded mesh arrangements to prevent burning cinders from the engines entering the wagon and leading to fire break out;

(h)

two breast bars shall be provided on each side of the wagon, one at a height of 50 to 80 cm and the other at 110 cm.

62.

For the transport of equines by goods-vehicles, the following precautions shall be taken, namely:--

(a)

specially fitted vehicles with a special type of tail-board and padding around the sides shall be used;

(b)

ordinary goods vehicles shall be provided with anti slipping material on the floor and the superstructure, if low, should be raised;

(c)

bamboo poles of at least 8 cm diameter between each animal and two stout batons at the back shall be provided to prevent the animal from falling;

(d)

to prevent horses from being frightened or injured their heads should face left away from the passing traffic;

(e)

each vehicle shall not carry more than four to six equines;

(f)

each vehicle shall be provided with one attendant;

(g)

these vehicles shall be driven at a speed not more than 35 kilometers per hour.

63.

For the transport of equines by sea the following precautions shall be taken, namely:--

(a)

horses may normally be accommodated in single stalls and mules in pens, each pen holding four to five mules;

(b)

ample ventilation shall be ensured by keeping portholes and providing permanent air trunks or electric blowers on all decks, and exhaust fans shall be installed to blow out foul air;

(c)

all standings shall be arranged the ship with heads facing inwards;

(d)

to avoid distress specially during hot weather, the ship may go under way immediately after embarking and disembarking shall be done as early as possible after anchoring;

(e)

colts and fillies shall be kept on the exposed decks;

(f)

a pharmacy and spare stalls for five per cent of equines shall be available;

(g)

passage between two rows of pens shall not be less than 1.5 metres.

Chapter VI

Transport Of Sheep And Goats

64.

Rules 65 to 75 shall apply to the transport of sheep and goats by rail or road involving journeys of more than six hours.

65.

(a) A valid health certificate by a qualified veterinary surgeon to the effect that the sheep and goats are in a fit condition to travel by rail or road and are not suffering from infectious or contagious or parasitic disease shall accompany each consignment.

(b)

In the absence of such a certificate, the carrier shall refuse to accept the consignment for transport.

(c)

The certificate shall be in a form specified in Schedule J.

66.

(a) Each consignment shall bear a label showing in bold red letter the name, address and telephone number (if any) of the consignor and consignee, the number and type of sheep or goats being transported and quantity of rations and food provided.

(b)

The consignee shall be informed in advance about the train or vehicle in which the consignment of sheep or goats are being sent and its arrival time.

(c)

The consignment of sheep or goats shall be booked by the next train or vehicle and shall not be detained after the consignment is accepted for booking.

67.

(a) First-aid equipment shall accompany the sheep or goats in transit.

(b)

Suitable ramps shall be provided for loading and unloading the sheep or goats.

(c)

In the case of a railway wagon, when the loading or unloading is done on the platform the dropped door of the wagon shall be used as a ramp.

68.

Sheep and goats shall be transported separately; but if the lots are small special partition shall be provided to separate them.

69.

Rams and male young stock shall not be mixed with female stock in the same compartment.

70.

Sufficient food and fodder shall be carried to last during the journey and watering facility shall be provided at regular intervals.

71.

Material for padding, such as straw, shall be placed on the floor to avoid injury if an animal lies down, and this shall be not less than 5 cm thick.

72.

The animals shall not be fettered unless there is a risk of their jumping out and their legs shall not be tied down.

73.

The space required for a goat shall be the same as that for a woolled sheep and the approximate space required for a sheep [and Goat while being transported by rail/road shall be as under:--

Approximate weight of animal in Kilogram

Space required in square meter

Woolled

Shorn

Not more than 20

0.17

0.16

More than 20 but not more than 25

0.19

0.18

More than 25 but not more than 30

0.23

0.22

More than 30 but not more than 40

0.27

0.25

More than 40

0.32

0.29.]

74.

(a) No railway wagon shall accommodate more than the following number of the sheep or goats:--

Broad guage

Metre guage

Narrow guage

(1)

(2)

(3)

(4)

(5)

Area of

Wagon

Less than

21.11

Square

Metres

70

Area of

Wagon

21.11 Square

Metres

And

Above

100

Area of

Wagon

Less than

12.5

Square

Metres

50

Area of

Wagon

12.5 Square

Metres

And

Above

60

(b)

Adequate ventilation shall be provided in every wagon">(b) Adequate ventilation shall be provided in every wagon.

Upper door of one side of wagon shall be kept open and properly fixed and the upper door of the wagon shall have wire guage closely welded mesh arrangements to prevent burning cinders from the engines entering the wagon and leading to fire breakout.

75.

(1)

Goods vehicles of capacity of 5 or 4.5 tons, which are generally used for transporting animals, shall carry not more than forty sheep or goats.

(2)

In the case of large goods vehicles and wagons, partition shall be provided at every two or three metres across the width to prevent the crowding and trapping of sheep and goats.

(3)

In the case of ewes, goats or lambs or kids under six weeks of age, separate panels shall be provided.

[CHAPTER VII] Transport Of Poultry By Rail, Road And Air

76.

Definition .-In this Chapter, unless the context otherwise requires, "Poultry" includes day old chicks and turkey poult, chickens, quails, guinea fowls, ducks, geese and turkeys.

77.

General requirement .-In transport of poultry by rail, road or air,-

(a)

the containers shall be properly cleaned and sterilised before the poultry is placed in them;

(b)

poultry shall not be exposed to the sunlight, rain and direct blast of air during transport;

(c)

poultry shall not be transported when the temperature exceeds 25 degree Celsius or when the temperature falls below 15 degree Celsius.

78.

Day-old chicks and turkey poult .-In transport of day old chicks and poultry by rail, road and air,-

(a)

Chicks and poult shall be packed and dispatched immediately after hatching and shall not be stored in boxes for any length of time before dispatch.

Note .-In the said transport endeavour shall be made by the consignor or his agent so that consignments shall arrive at destination within the shortest possible time after being taken out of the incubator. Seventy-two hours shall normally be regarded as the maximum period to be taken from incubator to brooder in winter and 48 hours in summer;

(b)

chicks or poult shall not be fed or watered before and during transportation;

(c)

every effort shall be made to ensure that chicks and poult arrive as quickly as possible at the dispatching site;

(d)

personal attention shall be given by the consignor of the forwarding agent to ensure that all consignments are kept out of direct sunlight rain and heat;

(e)

care shall be taken to carry the boxes in a level position so that chicks are not in danger of falling over on to their backs and the putting up of other merchandise over and around chick boxes shall be avoided.

79.

Poultry other than day-old chicks and turkey poult .-In transport of poultry other than day old chicks and turkey poult by rail road or air,-

(a)

the poultry to be transported shall be healthy and in good condition and shall be examined and certified by a veterinary doctor for freedom from infectious diseases and fitness to undertake the journey;

(b)

poultry transported in the same container shall be of the same species and of the same age group;

(c)

poultry shall be properly fed and watered before it is placed in containers for transportation and extra feed and water shall be provided in suitable troughs fixed in the containers;

(d)

arrangements shall be made for watering and feeding during transportation and during hot weather, watering shall be ensured every six hours;

(e)

male stock shall not be transported with female stock in the same container.

80.

Road travel .-In transport of poultry by road the container shall not be placed one on the top of the other and shall be covered properly in order to provide light, ventilation and to protect from rain, heat and cold air.

81.

Rail travel .-In transport of poultry by rail,-

(a)

in case the journey is for more than twelve hours, an attendant shall accompany the consignment;

(b)

poultry shall not be exposed to rain or direct blast of air,

(c)

as far as possible poultry shall be transported in wagons having adequate facilities for ventilation and no other merchandise which may result in mortality of birds shall be loaded in the same wagon.

82.

Air travel .-In transport of poultry by air or for international transport the containers carrying poultry shall be kept near the door and shall be unloaded immediately on arrival.

83.

Containers for transportation .-In transport of poultry by rail, or air,-

(a)

containers used to transport poultry shall be made of such material which shall not collapse or crumble and they shall be well ventilated and designed to protect the health of poultry by giving it adequate space and safety;

(b)

the containers shall be so designed as to render it impossible for birds to crowd into the corners during transportation, and to avoid danger of boxes being stocked so close together as to interfere with ventilation;

(c)

all the containers shall be clearly labelled showing the name, address and telephone number of the consignor and the consignee;

(d)

the minimum floor space per bird and the dimensions of the containers for transporting poultry shall be as specified in the table below, namely:--

TABLE

S. No. Kind of poultry

Minimum

Dimension

Number in a container

Floor space

Cm²

Length

cm

Width

cm

Height

cm

(i)

Month old chickens

75

60

30

18

24

(ii)

Three month old chickens

230

55

50

35

12

(iii)

Adult stock (excluding geese and turkeys)

480

115

50

45

12

(iv)

Geese and turkeys

900

1300

1900

120

75

55

75

35

35

75

75

75

10 youngs

2 growing

1 grown up

(v)

Chicks

60

45

12

80

(vi)

Poult

60

45

12

60

84.

Special requirement of containers for chicks and poults .-In transport of poultry by road, rail or air,--

(a)

wire mesh or a net of any material shall not be used as a bottom for the containers;

(b)

the container shall be properly secured to avoid pilferage;

(c)

the following instruction shall be printed on a label and fixed to the lid or printed directly on sides, namely "Care in Transit";

(d)

the consignee shall be informed about the train, transport or flight number and its time of arrival well in advance;

(e)

poultry shall not be transported continuously for more than 6 hours and whole batch shall be inspected at every 6 hours interval;

(f)

the transportation shall not remain stationary for more than 30 min and during this period, it shall be parked in shade and arrangements shall be made for feeding and watering;

(g)

all precautions against fire shall be taken and provision of fire extinguishers in transport shall be provided.

Chapter VIII

Transport Of Pigs By Rail Or Road

85.

Definition .-In this Chapter, unless context otherwise requires, "pigs" includes piglets, hogs, hoglets and animals of pigs family.

86.

Duration of travel .-Rules 87 to 95 shall apply to the transport of pigs by rail or road involving journeys of more than six hours.

87.

Health certificate .-(1) A valid health certificate by a veterinary doctor to the effect that the pigs are in a fit condition to travel by rail or road and are not suffering from infectious or contagious or parasitic disease shall accompany each consignment in the transport of pigs by rail or road.

(2)

In the absence of a certificate under sub-rule (1) the carrier shall refuse to accept the consignment for transport.

(3)

The certificate under sub-rule (1) shall be in a form specified in Schedule K.

88.

Identification of consignor and consignee .-For the purpose of this Chapter-

(a)

each consignment shall bear a label showing in bold red letters the name, address and telephone number (if any) of the consignor and consignee, the number and type of pigs being transported and quantity of rations and food provided to them;

(b)

the consignee shall be informed in advance about the train or vehicle in which the consignment of pigs is being sent and its arrival time;

(c)

the consignment of pigs shall be booked by the next train or vehicle and shall not be detained after the consignment is accepted for booking.

89.

First aid .-In transport of pigs by rail or road,-

(a)

first-aid equipment shall accompany the pigs;

(b)

suitable ramps shall be provided for loading and unloading the pigs;

(c)

in the case of a railway wagon, when the loading or unloading is done on the platform the dropped door of the wagon shall be used as a ramp.

90.

Group of pigs .-In transport of pigs by rail or road, male young stock shall not be mixed with female stock in the same compartment.

91.

Facility of food and water .-In transport of pigs by rail or road, sufficient food and fodder shall be carried to last during the journey and watering facility shall be provided at regular intervals.

92.

Padding of floor during travel .-In transport of pigs by rail or road, material for padding such as straw, shall be placed on the floor to avoid injury if an animal lies down, and this shall be not less than 5 cm. thick.

93.

Ban on fettering .-In transport of pigs by rail or road, the animals shall not be fettered unless there is a risk of their jumping out and their legs shall not be tied down.

94.

Space requirement during rail travel .-In transport of pigs by rail,--

(a)

no railway wagon shall accommodate more than the number of pigs as specified in the Table below:--

Broad gauge

Metre gauge

Narrow gauge

(1)

(2)

(3)

1[Area of wagon VPU having Floor Area 63.5 Square meter Number of pigs: 104

(0.61 square)]

Area of wagon Less than 12.5 Square metres Number of pigs: 25

Area of wagon More than 12.5 Square metres Number of pigs:30

Not allowed

|||

(b)

adequate ventilation shall be provided in every wagon and the upper door of one side of wagon shall be kept open and properly fixed and the upper door of the wagon shall have wire gauge, closely welded mesh arrangements to prevent burning cinders from the engines entering the wagon and leading to fire breakout.

95.

Space requirement during road travel .-In transport of pigs by road,--

(a)

[Maximum Number of pigs permitted for commonly sized road vehicle

Sl.

No.

Type of Animal

Maximum Number of Pigs Permitted for road vehicles

Vehicle having size 5.6m x 2.35m

Vehicle having size 5.15m x 2.18m

Vehicle having size 3.03m x 2.18m

Vehicle having size 2.9m x 2.0m

1.

Weaner

43

37

22

19

2.

Young

31

26

15

13

3.

Adult

21

18

10

9

Note.-For the purpose of pigs of all breeds, ages and sex, the following Space allowances shall apply:-

(a)

Weaner-Piglet which has just been separated from the mother for the purpose of independent rearing and commonly in the weight range of 12 kg-15 kg.

(b)

Young-Male or female pig between 03 to 06 months of age and Commonly in the weight range of 15 kg.-50kg.

(c)

Adult-A male or female pig above 06 months of age and having weight more than 50 kg.]

(b)

in the case of large goods vehicles and containers, partition shall be provided at every two or three metres across the width to prevent the crowding and trapping of pigs;

(c)

in the case of pigs under six weeks of age, separate panels shall be provided.

Chapter IX

Miscellaneous

96.

Issue of certificate before transportation .-(1) A valid certificate issued by an officer or any person or Animal Welfare Organisation duly recognised and authorised for this purpose by the Animal Welfare Board of India or the Central Government shall be procured by any person making transport of any animal before transportation of such animal verifying that all the relevant Central and State Acts, rules and orders pertaining to be said animals including the rules relating to transport of such animals have been duly complied with and that the animal is not being transported for any purpose contrary to the provision of any law.

(2)

In the absence of such certificate, the carrier shall refuse to accept the consignment for transport.

Explanation .-For the purposes of this rule the certificate shall be issued in such form as may be specified for this purpose by the Central Government.

97.

Cancellation of permit or authorisation for transport .-(1) In the event of contravention or non-compliance of any of the rules contained in these rules for transport of animals, if it is pointed out in writing by any officer or persons or Animal Welfare Organisation authorised for this purpose by the Animal Welfare Board of India or the Central Government, then, any permit or authorisation issued for such transport shall be immediately cancelled by the concerned authority and it shall be the duty of the police to stop the further transport even from the intermediary station and proceed against the said offenders and deal with the animal in accordance with law.

(2)

The custody of the animals immediately after unloading from the rail wagons, truck or any other vehicle shall be given to the authorised Animal Welfare Organisation if available, till the competent authority or the Magistrate having jurisdiction decides about their care and upkeep.

98.

General conditions of transport .-(1) Animals to be transported shall be healthy and in good condition and such animals shall be examined by a veterinary doctor for freedom from infectious diseases and their fitness to undertake the journey, provided that the nature and duration of the proposed journey shall be taken into account while deciding upon the degree of fitness.

(2)

An animal which is unfit for transport shall not be transported and the animals who are new born, diseased, blind emaciated, lame, fatigued or having given birth during the preceding seventy two hours or likely to give birth during transport shall not be transported.

(3)

Pregent and very young animals shall not be mixed with other animals during transport.

(4)

Different classes of animals shall be kept separately during transport.

(5)

Diseased animal, whenever transported for treatment, shall not be mixed with other animals.

(6)

Troublesome animals shall be given tranquilisers before loading during transport.

(7)

Animals shall be transported in their on-farm social groups (established atleast one week prior to journey).

A

(See rule 4)

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL DOGS/CATS

This Certificate should be completed and signed by a qualified Veterinary Surgeon

Date and time of examination

.....

.....

Species of dogs/cats

.....

.....

Number of cages Number of

Dogs/cats.....

Breed and identification marks, if any

.....

.....

Transported from To

.....Via.....

I hereby certify that I have read rules 8 to 14 in Chapter 11 of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor)I have examined the above mentioned dogs/cats in their travelling cages not more than 12 hours before their departure.

2. That each of the dogs/cats appeared to be in good health, free from signs of injury, contagious and infectious disease including rabies and in a fit condition to travel by rail/road/inland/waterway/sea/air.

3. That the dogs/cats were adequately fed and watered for the purpose of the journey.

4. That the dogs/cats have been vaccinated.

(a)

Type of vaccine/s:

(b)

Date of vaccination/s:

Signed

Address.....

Qualifications.....

Date

B

(See rule 11)

SIZE AND TYPE OF CRATE FOR TRANSPORT OF DOGS

The design of the cage mentioned in rule 11 in Chapter 11 of the Transport of Animals Rules, 1978 shall be as per the design as printed on page 7 of IS: 4746 - 1968 published by the Indian Standards Insitution.

All dimensions in centimetres

By Rail/Road/Inland Waterways Sea, By Air

Length (L)

A x 1-1/2

A

+ C + 10

Width (W)

A

D

+ 2 + 10

Height (H)

B

+ 15

B

+ -10

Length - tip of nose to root of tail

(A)

Width - width across the shoulders

(D)

Height - Tip of ears to toe while standing (B)

Elbow size - Toe to tip of elbow (C)

Note- Cages, Cartons or crates, used to transport dogs, shall be of such material which will not tear or crumble. They shall be well constructed, well ventilated and designed to protect the health of dogs by giving them adequate space and safety. It is essential that wire mesh should be nose and paw proof; suitable material is that welded wire mesh of not less than 3mm with a spacing 12 x 12 mm. Expanded metal and wire netting are unsuitable for this purpose. There should be no protruding nails or unprotected edges of wire. Dogs Kennels in rail coaches shall be so placed as to give protection to dogs from extremes of temperature and disturbance from birds and by giving them adequate space for health and safety.

C

(See rule 11)

SIZE AND TYPE OF CRATE FOR TRANSPORT OF CATS

The design of the cage mentioned in rule 11 in Chapter 11 of the Transport of Animals Rules, 1978 shall be as per the design as printed on page 8 of ISI 4746 - 1968 published by the Indian Standards Institution.

All dimensions in Centimetres

By rail/road/inland waterways sea by air

Length

(L)

A x 2

A x 2

Width (W)

A

A

Height

(H)

B + 15

B + 10

Length -

tip of nose to root of tail (A)

Width -

width across the shoulders (D)

Height -

Tip of ears to toe while standing (B)

Elbow size - Toe to tip of elbow (C)

Note: Cages, cartons or crates, used to transport cats, shall be of such material which will not tear or crumble. They shall be well constructed, well ventilated and designed to protect the health of the cats by giving them adequate space

and safety. It is essential that wire mesh should be nose and paw proof; suitable material is a welded wire mesh of not less than 3mm with a spacing 12 x 12 mm. Expanded metal wire netting are unsuitable for this purpose. There should be no protruding nails or unprotected edges of wire. Cats Kennels in rail coaches shall be so placed as to give protection to cats from extremes of temperature and disturbance from birds and by giving them adequate space for health and safety.

D

(See rules 16 and 32)

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL MONKEYS

This Certificate should be completed and signed by a qualified Veterinary Surgeon.

Date & time of examination.....

Species of Monkeys :

Number of Cages Number of Monkeys

Sex.....Age.....

Breed and identification marks, if any

Transported from To.....Via

I hereby certify that I have read rules 15 to 45 in Chapter III of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor)I have examined the above mentioned monkeys in their travelling cages not more than 12 hours before their departure.
2. That each monkey appeared to be in a fit condition to travel from the trapping area to the nearest rail-head/from the nearest rail-head to another rail-head/from the rail - head to the nearest airport/by air and is not showing any signs of infectious or contagious diseases.
3. That the monkeys appeared to be under 6 months of age and that no animal appeared to be pregnant.
4. That the monkeys were adequately fed and watered for the purpose of the journey.
5. That the monkeys have been vaccinated.

(a)

Type of vaccine/s:

(b)

Date of vaccination/s:

Signed.....

Address.....

Qualifications.....

Date

E

[See rule 23(5) (a) and rule 23(6)]

SIZE AND TYPE OF CRATE FOR TRANSPORT OF MONKEYS FROM TRAPPING AREA TO NEAREST RAIL-HEAD

The construction details of two types of cages mentioned in rule 22(5) (a) in Chapter III of the Transport of Animals Rules, 1978 shall be as per the dimensions and design as printed on page 5 of IS: 3699 (Part - 1) - 1966 published by Indian Standards Institution.

F

[See rule 40(4)]

SIZE AND TYPE OF CRATE FOR TRANSPORT OF MONKEYS BY AIR

The construction details of two types of cages mentioned in rule 40(3) (a) and (b) in Chapter III of the Transport of

Animals Rules, 1978 shall be as per the dimensions and design as printed on page 6 of IS: 3059 - 1965 published by Indian Standards Institution.

G

[See rule 40 (5)]

SIZE AND TYPE OF CRATE FOR TRANSPORT BY AIR OF PREGNANT AND NURSING MONKEYS AND MONKEYS WEIGHING OVER 5 KG.

The construction details of two types of cages mentioned in rule 40(5) in Chapter III of the Transport of Animals Rules, 1978 shall be as per the dimensions and design as printed on page 7 of IS: 3059 -1965 published by Indian Standards Institution.

H

[See rule 47]

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL CATTLE

This Certificate should be completed and signed by a qualified Veterinary Surgeon

Date and time of examination :

.....
.....

Species of cattle.....

Number of Trucks/Railway Wagons

.....
.....

Number of cattle

.....
Sex.....Age

Breed and identification marks, if any

.....
.....

Transported from To
.....Via.....

I hereby certify that I have read rules 46 to 56 in Chapter IV of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor)I have examined the above mentioned Cattle in the goods vehicle/railway wagons not more than 12 hours before their departure.

2. That each cattle appeared to be in a fit condition to travel by rail/road and is not showing any signs of infectious or contagious or parasitic disease and that it has been vaccinated against rinderpest and any other infectious or contagious or parasitic diseases(s).

3. That the cattle were adequately fed and watered for the purpose of the journey.

4. That the cattle have been vaccinated.

(a)

Type of vaccine :

(b)

Date of vaccination:

Signed

Address

Qualifications

Date

I

[See Rule 58]

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL EQUINES

This Certificate should be completed and signed by a qualified Veterinary Surgeon.

The Transport Of Animals Rules, 1978

Date and time of
examination.....
.....
Species of
Equines.....
.....
Number of
Equines.....
.....
Sex.....Age
.....
Breed and identification marks, if any.....Transported
from.....To
.....Via.....

I hereby certify that I have read rules 57 to 63 in Chapter V of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor) I examined the above mentioned equines not more than 12 hours before their departure.
2. That each equine appeared to be in a fit condition to travel by rail/road/sea and is not showing any signs of any infectious or contagious disease(s) and that it has been vaccinated against any infectious or contagious diseases(s).
3. That the equines were adequately fed and watered for the purpose of the journey.
4. That the equines have been vaccinated.

(a)

Type of vaccine (s) :

(b)

Date of vaccination:

Signed.....

Address.....

Qualifications.....

Date

J

[See rule 65]

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL - SHEEP AND GOATS

This Certificate should be completed and signed by a qualified Veterinary Surgeon

Date and time of examination
.....
.....
Species of Animals
.....
.....
Number of Animals
.....
.....
Sex.....Age
.....

I hereby certify that I have read rules 64 to 75 in Chapter VI of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor)I have examined the above mentioned animals not more than 12 hours before their departure.
2. That each animal appeared to be in a fit condition to travel by rail/road and is not showing any signs of any infectious or contagious or parasitic disease(s) and that it has been vaccinated against any infectious or contagious or parasitic disease(s),

3. That the animals were adequately fed and watered for the purpose of the journey.
4. That the animals have been vaccinated.

(a)

Type of vaccine(s):

(b)

Date of vaccination:

Signed

Address

Qualifications

Date

[SCHEDULE K

[See rule 87(3)]

PROFORMA FOR CERTIFICATE OF FITNESS TO TRAVEL PIGS

(This Certificate should be completed and signed by a Veterinary doctor.)

Date and time of examination

.....

.....

Species of Animals

.....

.....

Number of Animals

.....

.....

Sex.....Age

.....

I hereby certify that I have read rules 86 to 95 in Chapter VIII of the Transport of Animals Rules, 1978.

1. That, at the request of (consignor)I have examined the above mentioned animals not more than 12 hours before their departure.

2. That each animal appeared-to be in a fit condition to travel by rail/road and is not showing any signs of any infectious or contagious or parasitic disease(s) and that it has been vaccinated against any infectious or contagious disease(s),

3. That the animals were adequately fed and watered for the purpose of the journey.

4. That the animals have been vaccinated.

(a)

Type of vaccine(s):

(b)

Date of vaccination:

Signed

Address

Qualifications

Date]

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Translation